

Court No. - 3

Case :- WRIT - C No. - 37321 of 2022

Petitioner :- Bharat Sanchar Nigam Limited

Respondent :- The State Of U P And 4 Others

Counsel for Petitioner :- Sunil Choudhary

Counsel for Respondent :- C.S.C.,Abhishek Srivastava

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Sunil Choudhary, learned counsel for the petitioner, Sri Ashish Kumar Nagvanshi, learned standing counsel for the respondent No.1 and Sri Amit Singh holding brief of Sri Abhishek Srivastava, learned counsel for the respondent Nos.2 to 5.

This writ petition has been filed praying for the following relief:

- "1. issue a writ order or direction in the nature of Certiorari to quash the electricity disconnection dated 28/29-8-2022 pursuant to the disconnection notice dated 08.06.2022 as well as effect of letter dated 07.10.2022 issued by respondent no. 3 (Contained as annexure no.6,18) to this writ petition.*
- 2. issue a writ, order or direction in the nature of Mandamus directing the respondent authorities to restore the electricity connection in the plant's of petitioner forthwith.*
- 3.issue a writ, order or direction in the nature of Mandamus directing the respondent no.3 to decide the application of the petitioner dated 22.09.2022 (Contained as annexure no. 14) with in span of time as may be fixed by Hon'ble court.*
- 4. To issue writ, order or direction in the nature of Mandamus directing the concerned respondent authorities to ameliorate the outstanding electric dues of the year 2014 to 2018 according to erstwhile tariff plan and same may be communicated to the petitioner forthwith so that same may be deposited as per one time settlement scheme by waiving 100% surcharge."*

The petitioner is Bharat Sanchar Nigam Limited.

Grievance of the petitioner is that despite the payment of entire dues, the respondent Nos.2, 3 and 4 are acting arbitrarily and have disconnected the electricity connection resulting in disruption of the communication services (phone services) being provided by the petitioner to general public.

Matter appears to be serious.

Therefore, we direct the respondent No.2 to file a counter affidavit by means of his personal affidavit within three days in which he shall specifically show cause for disconnection of the electricity connection. In the event, counter affidavit is not filed within the specified time, the respondent No.2 shall remain personally present and shall show cause.

Put up as a fresh case on 16.01.2023 at 10:00 A.M.

As an interim measure, it is provided that **the respondent No.3 and the petitioner, both shall sit together tomorrow in the office of the respondent No.3 and shall try to find out an amicable solution within 24 hours.**

We hope and trust that **the respondent No.2 shall issue instructions in this regard to the respondent No.3 today itself.**

Let this order be communicated by learned counsel for the respondent Nos.2, 3 and 4 without waiting for a copy of this order.

Order Date :- 11.1.2023

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Counsel for Respondent :- C.S.C.,Abhishek Srivastava

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner, learned standing counsel for the State - respondents and Sri Abhishek Srivastava, learned counsel for the respondent nos. 2, 3 & 4.

Pursuant to our order dated 11.01.2023, the respondent no.2 has filed today a short counter affidavit which is taken on record.

Learned counsel for the petitioner states that electricity supply of the petitioner has been restored by the respondents. He, however, states that there is some serious disputes regarding bills including leviability of surcharge and adjustment of payment only against surcharge.

Be as it may, learned counsel for the respondent Nos. 2, 3 and 4 states on instructions that the petitioner has a remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005 to raise dispute before consumer grievance redressal forum and ombudsman.

In view of the statement made by learned counsel for the respondent nos. 2, 3 & 4, and without expressing any opinion on merits of the case of the parties, this writ petition is **disposed** of giving liberty to the petitioner to avail the remedy provided under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

Order Date :- 16.1.2023/vkg